

June 28, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 8820
(SIXTH REVISION)

EXPIRATION DATE: May 31, 2010

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer SA, Puteaux Cedex, France
(U.S. Agent: Eurotainer US, Inc., Humble TX)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.2 material in non-DOT Specification IMO TYPE 5 portable tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315 except as specified herein.
5. BASIS: This special permit is based on the application of Eurotainer SA dated June 14, 2006, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Bromotrifluoromethane or Refrigerant gas, R13B1	2.2	UN1009	N/A
Chlorodifluoromethane or Refrigerant gas, R22	2.2	UN1018	N/A
Chlorodifluoromethane and Chloropentafluoroethane mixture or Refrigerant gas, R 502, with fixed boiling point, with approximately 49 percent chlorodifluoromethane	2.2	UN1973	N/A
Chlorodifluorobromomethane or Refrigerant gas, R12B1	2.2	UN1974	N/A
1, 1, 1, 2-Tetrafluoroethane or Refrigerant gas R134a	2.2	UN3159	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification portable tanks, mounted in ISO frames, designed and constructed in accordance with Fauvet-Girel drawings Co 167053, Co 167012 Rev. A, other drawings, technical specifications and calculations on file with the OHMEA, and in conformance with the following:

- (1) Code--Complies with ASME Code (not Code stamped);
IMO Type 5.
- (2) Insulation--None
- (3) Water Capacity (U.S. Gallons)--3,698
- (4) Material--French steel standard NFA 36205,
designation A 52 FP (Carbon Steel); Yield
strength - 54,390 psi; Tensile strength - 81,222
psi
(outside dia.) X (length) X (thickness)
- (5) Tank Size (inches) 74.80 220.866 0.834
(after forming)

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Head Thickness--0.837 (after forming)
Weld Joint Efficiency--1.0
Corrosion Allowance--0.0
Number of Baffles--2

(6) Design Pressure (PSIG)--395.66

Note: Design pressure means "Maximum allowable working pressure (MAWP)" as used in the ASME Code.

(7) Test Pressure, Minimum (PSIG)--684.57

(8) Openings--One(1), 18 inch diameter manhole on the rear head; one(1), inspection opening on the front head; one(1), safety relief device pad on top; one(1), liquid phase outlet and one (1) gas phase outlet on the bottom. Note: Each bottom outlet valve must be provided with a shear section that meets the requirements of § 178.337-12.

(9) Tank surface area (square feet)--380

(10) Pressure Relief Devices--Two (2), 2.5 inch diameter spring loaded safety relief valve outboard of and in series with one (1) 3.0 inch diameter rupture disc all set at 435 psig. Total relief device capacity is 1,671,090 SCFH.

(11) G-Loadings: Vertical down 3; Vertical up 1; Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight (pounds)--55,000

(13) Maximum Commodity Weight (pounds)--36,040

(14) Tare Weight (pounds)--18,960

(15) Design Specific Gravity--1.17

(16) Design Temperature (°F)--122

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b. TESTING -

1. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
2. A test report documenting a satisfactory ISO prototype frame test for this tank design must be on file with the OHMSPA prior to the first shipment.
3. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) be retested and reinspected in accordance with the provisions of § 180.605 except the use of an approval agency is not required.

c. OPERATIONAL CONTROLS -

1. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 8820".
2. No product may be shipped that has venting requirements exceeding 1,671,090 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association(CGA) pamphlet S-1.2.
3. The tank must be filled in accordance with the provisions of § 173.315.
4. "DOT-SP 8820" must replace the "DOT-51" specification marking and be stamped on the metal manufacturer's data plate on the line which reads "D.O.T. Specification No.".
5. The internal valves on the liquid and vapor discharge openings must be provided with remote means of automatic closure, both mechanical and thermal, that are installed at the ends of the tank in at least two, diagonally opposite locations. If the discharge connection at the tank is not in the general vicinity of one of the two locations specified above, one additional

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fusible element must be installed so that heat from a fire in that area will activate the emergency control system. Fusible elements may not have a melting point exceeding 250°F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Packagings permanently marked 'DOT-E 8820', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 8820'.

d. Shipping papers displaying 'DOT-E 8820' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

b. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

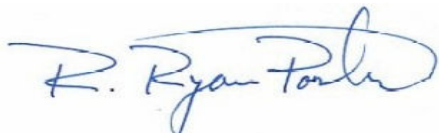
12. REPORTING REQUIREMENTS:

a. The grantee of this special permit, as identified in paragraph 1 above, must contact the OHMSPA immediately after any of the tanks covered by this special permit are sold to another party.

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b. Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Foster" or similar, with a stylized flourish.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln